

Court No. - 40

Case :- WRIT - C No. - 36202 of 2022

Petitioner :- Jagat Narayan Vishwakarma

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Brij Bhushan Pandey

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Vivek Kumar Singh, J.

Heard Sri B.B. Pandey, learned counsel for the petitioner, learned Standing Counsel for the State and Sri Udit Chandra, learned counsel appearing for respondent nos. 2 to 4.

By means of the present writ petition, the petitioner is challenging provisional assessment dated 02.7.2022 issued by respondent no. 3.

Sri Udit Chandra, learned counsel for the Corporation raised a preliminary objection regarding maintainability of the present writ petition on the ground that the Uttar Pradesh Electricity Supply Code, 2005 is a Code in itself. He submits that since the present matter relates to theft and unauthorized use of electricity, the petitioner has an efficacious remedy to file an appeal under Provision 6.8 of the Uttar Pradesh Electricity Supply Code, 2005.

Considering the objections, so raised by learned counsel for the Corporation, we are not inclined to entertain the writ petition. The petitioner has an efficacious remedy to take recourse under Provision 6.8 of the Uttar Pradesh Electricity Code, 2005. It is always open for the petitioner to avail the remedy available to him under the Code, 2005.

With the aforesaid leave, the present writ petition stands disposed of.

Order Date :- 2.1.2023

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